

Student Academic Misconduct Regulations 2012

Part 1. Preliminary

1. Objectives

The objective of these Regulations is to maintain and protect academic integrity at the University.

2. Authorising provision

These Regulations are made under the *Academic and Student Affairs Statute 2012* and sections 28, 29 and 30 of the Swinburne University of Technology Act 2010.

3. Definitions

In these Regulations—

authorised officer means a person appointed under regulation 10;

academic misconduct has the meaning given to it in regulation 4;

plagiarism has the meaning given to it in regulation 5;

research misconduct means the dishonest, reckless or negligent deviation from accepted standards of scientific and scholarly conduct of research, including:

1. the fabrication or falsification of data or results;
2. plagiarism;
3. misleading or failing to appropriately attribute and acknowledge sources and contributions;
4. failure to disclose a conflict of interest;
5. failure to obtain necessary regulatory or ethical approval; and
6. failure to comply with relevant regulatory or ethical approval conditions or requirements;

but does not include honest differences in judgement and honest errors that are minor and unintentional;

A security officer includes a person employed or engaged by a contractor of the University to provide security services.

Part 2. Academic Misconduct by Students

4. Academic misconduct

It is academic misconduct if a student—

- a. in relation to an examination or assessment—
 - i. cheats;
 - ii. engages in plagiarism;
 - iii. improperly colludes with another person;
 - iv. fails to comply with examination or assessment rules or directions; or
 - v. engages in other conduct with a view to gaining unfair or unjustified advantage; or
- b. in relation to research, commits research misconduct.

5. Plagiarism

1. For the purposes of these Regulations a person engages in plagiarism if he or she uses another person's work as though it is his or her own work.
2. Without limiting subregulation (1), a person uses another person's work as though it is his or her own work if he or she, without appropriate attribution—
 - a. when writing a computer program and presenting it as his or her own, incorporates the coding of a computer program written by another person;
 - b. uses or paraphrases work from any source other than the person's own work, including a book, journal, newspaper article, set of lecture notes, current or past student's work or any other person's work;
 - c. uses a musical composition, audio, visual, graphic or photographic work created by another person;
 - d. uses realia created by another person, including an object, artefact, costume or model.
3. Without limiting subregulation (1), it is plagiarism if a person produces and submits or presents as his or her own independent work an assessment item which has been prepared in conjunction with another person.

Part 3. Suspected Academic Misconduct

6. Suspected academic misconduct during an examination
 1. An examination supervisor may confiscate anything in the apparent possession of a student if—

- a. the student apparently intends to enter an examination room or is in an examination room; and
 - b. the thing being confiscated appears to indicate that cheating has occurred, is occurring or may occur.
 2. A student may be refused entry to an examination, or expelled from an examination room, if the student fails to give to an examination supervisor something which—
 - a. the supervisor has requested to examine for the purpose of ascertaining whether it may be confiscated;
 - b. the supervisor has confiscated or attempted to confiscate.
 3. A member of academic staff who suspects that academic misconduct by a student has occurred in relation to an examination may initiate an investigation.
7. Suspected academic misconduct generally
- A member of staff who suspects that academic misconduct by a student has occurred may—
1. take action under regulation 9;
 2. initiate an investigation.
8. Investigations
- An investigation under regulation 6 or 7—
1. must be overseen by a responsible staff member from the relevant academic, teaching or administrative area;
 2. in the case of research misconduct concerning externally funded research under a contract requiring the misconduct to be dealt with in accordance with the Australian Code for the Responsible Conduct of Research, must be in accordance with that Code.

Example 1

A student is suspected of research misconduct and an investigation is initiated. The investigation must be overseen by the research office.

Example 2

A student is suspected of cheating in an assessment task and an investigation is

initiated. The investigation must be overseen by a responsible staff member in the student's school or faculty.

Part 4. Sanctions

9. Removal from premises and confiscation

1. A University staff member or security officer may confiscate anything in the apparent possession of a student if—
 - a. the student apparently has committed, is committing or intends to commit academic misconduct; and
 - b. the thing being confiscated appears to indicate that academic misconduct has occurred, is occurring or may occur.
2. A student may be refused access to University premises, or be expelled from University premises, if the student appears to be committing academic misconduct.

10. Authorised officers

1. The Vice—Chancellor must appoint authorised officers for the purposes of these Regulations.
2. If an authorised officer becomes aware of, or has brought to his or her attention, an act of academic misconduct and if the authorised officer is reasonably satisfied based on the evidence (including any evidence that the authorised officer may have gathered through investigation) that a student has engaged in academic misconduct, the authorised officer may do any one or more of the following—
 - a. reprimand and caution the student;
 - b. agree with the student a course of corrective action;
 - c. agree with the student on a course of counselling;
 - d. suspend a student for up to two weeks;
 - e. prohibit or deny access to or use of University premises, University facilities and services or University activities for up to two weeks;
 - f. require the student to refrain from contact with specified persons;
 - g. impose conditions on the student's attendance at University premises, participation in University activities or use of University facilities and services;

h. require the student to re-submit the whole or part of the assessment, examination or research;

i. disallow or amend a mark or grade for the whole or part of the assessment, examination or research;

j. fail the student;

k. in the case of research misconduct concerning externally funded research under a contract requiring the misconduct to be dealt with in accordance with the Australian Code for the Responsible Conduct of Research, take a course of action in accordance with that Code.

3. In addition to those actions listed in subregulation (2), an authorised officer may—

a. suspend the student for longer than two weeks;

b. prohibit or deny access to or use of University premises, University facilities and services or University activities for longer than two weeks;

c. exclude the student; or

d. prevent the student from re-enrolling, receiving results, graduating or receiving an award.

4. The power conferred by subregulation (3) may only be exercised if the student has first been advised of the proposed decision and given reasonable opportunity to make a submission to the authorised officer.

5. A student who fails to comply with a sanction given under this regulation is guilty of general misconduct for the purposes of the *Student General Misconduct Regulations 2012*.

11. Notice to student

The student must be informed in writing of the decision by the authorised officer within five working days of the decision being made.